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AS AMENDED

By: Chapman and Ford of the
House

and

McIntosh of the Senate

An Act relating to state government; amending 74 O.S. 2021, Section 62.3, which relates to surplus property; allowing donation of certain Oklahoma Highway Patrol vehicles to certain political subdivisions for law enforcement purposes; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 62.3, is amended to read as follows:

Section 62.3. A. The Director of the Office of Management and Enterprise Services shall promulgate rules for use by state agencies and the Office of Management and Enterprise Services to dispose of surplus property. The rules shall include standards for recordkeeping, methods for removal or disposal of surplus property, and acquisition by state agencies and authorized entities of surplus property, and for Office management of surplus property programs.

1 B. A state agency selling, trading, redistributing or otherwise
2 disposing of surplus property shall comply with the rules
3 promulgated by the Director.

4 C. The Office shall make surplus property available to state
5 agencies and authorized entities, which shall include political
6 subdivisions, school districts, and nonprofit entities of this
7 state.

8 D. The provisions of the Oklahoma Surplus Property Act shall
9 not apply to institutions of higher education in this state, the
10 Oklahoma Historical Society, the University Hospitals Authority or
11 University Hospitals Trust or the Northeast Oklahoma Public
12 Facilities Authority. The Grand River Dam Authority shall be exempt
13 from the provisions of the Oklahoma Surplus Property Act for any
14 surplus property disposed of prior to November 1, 2006. CompSource
15 Oklahoma shall be exempt from the provisions of the Oklahoma Surplus
16 Property Act if CompSource Oklahoma is operating pursuant to a pilot
17 program authorized by Sections 3316 and 3317 of this title.

18 E. Notwithstanding the provisions of the Oklahoma Surplus
19 Property Act, the Oklahoma State Bureau of Investigation may,
20 pursuant to rules promulgated by the Oklahoma State Bureau of
21 Investigation Commission for that purpose, donate any surplus
22 property, as defined in Section 62.2 of this title, to any law
23 enforcement agency of any political subdivision of the State of
24 Oklahoma. The use of such donated equipment shall be limited to

1 valid and authorized law enforcement efforts by the receiving
2 agency.

3 F. Notwithstanding the provisions of the Oklahoma Surplus
4 Property Act, the Oklahoma Highway Patrol may, pursuant to rules
5 promulgated by the Director of the Office of Management and
6 Enterprise Services, donate surplus Oklahoma Highway Patrol vehicles
7 driven over ninety thousand (90,000) miles to any law enforcement
8 agency of any political subdivision of the State of Oklahoma in a
9 county with a population of no more than one hundred thousand
10 (100,000) residents. The use of such donated vehicles shall be
11 limited to valid and authorized law enforcement efforts by the
12 receiving agency.

13 SECTION 2. This act shall become effective November 1, 2025.

14 COMMITTEE REPORT BY: COMMITTEE ON RETIREMENT AND GOVERNMENT
15 RESOURCES

16 April 8, 2025 - DO PASS AS AMENDED
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